

- which tasks it intends to subcontract and clearly indicate the roles, activities and responsibilities of the subcontractor(s),
- specify the volume or proportion of the activities likely to be subcontracted.

7.2.1. Documentation and information to be provided

In **point 1.9.2** of 'Terms of Reference', the EIB has set requirements which evidence and extent of documentation and information is to be provided by subcontractors.

7.2.2. Assessment of subcontractors

In case of subcontracting, the tender will be assessed as follows:

- the exclusion criteria and the selection criteria for the legal capacity will be assessed in relation to each proposed subcontractor individually;
- the selection criteria for the economic and financial capacity will be assessed on a consolidated assessment – tenderer plus subcontractor(s) – depending on the extent to which the subcontractor(s) will put their resources at the disposal of the tenderer for the performance of the contract;

the selection criteria for the technical and professional capacity will be assessed in relation to the combined capacities of the tenderer and the subcontractor(s), as a whole, depending on the extent to which the subcontractor(s) will put their resources at the disposal of the tenderer for the performance of the contract.

Where a Tenderer is relying on the capacity of subcontractor(s) to meet the selection criteria, such entities must (i) be proposed to perform those services for which these capacities are required and (ii) submit a letter of undertaking in the tender to that effect (see, **point 6.4** above).

- The award criteria will be assessed in relation to the tender.

N.B. If a subcontractor does not fulfil one of the exclusion criteria, the Tenderer may be excluded.

7.2.3. Subcontracting during the contract implementation

Once the contract has entered into force, the successful Tenderer shall retain full liability towards EIB for the performance of the contract as a whole. EIB will not have any direct legal commitment with the subcontractor(s).

During the execution of the contract, the contractor will need EIB's express authorisation to replace a subcontractor with another subcontractor and/or to subcontract tasks for which subcontracting was not envisaged in the original tender, in compliance with the provisions on subcontracting foreseen in the General Terms and Conditions.

7.3. Reliance on the capacities of other entities

With regard to the selection criteria (i) economic and financial capacity and (ii) technical and professional capacity, Tenderers may, where appropriate for a particular contract, rely on the capacities of other entities, regardless of the legal nature of the links which it has with them. Where a Tenderer wants to rely on the capacities of other entities, it shall provide proof that it has at its disposal the resources necessary, for example by producing a written commitment by those entities to that effect.